

M/s Hind Agro Pvt Ltd v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 February 2020 · Writ - C No. 6486 of 2020 · **Writ disposed of as not entertainable; petitioner relegated to CGRF under Clause 7.10, with a short stay of coercive action and merits left open.**

HEADNOTE

A writ seeking certiorari against an Executive Engineer's order is not entertained where Clause 7.10 of the U.P. Electricity Supply Code, 2005 affords an unrebutted alternative of complaint to the Consumer Grievance Redressal Forum. The Court relegated the consumer to that Forum within two weeks, directed a reasoned decision after hearing preferably within four weeks, and stayed coercive action for six weeks or until the Forum decides, without examining merits.

FACTUAL SUMMARY

M/s Hind Agro Pvt Ltd filed a writ petition seeking certiorari to quash order dated 10.02.2020 (No. 911) of the Executive Engineer, Electricity Distribution Division-III, Dakshinanchal Vidyut Vitran Nigam Ltd., Lal Diggi, Aligarh. After adjournment from 24.02.2020, counsel for the electricity department submitted that the petitioner had an alternative statutory remedy of complaint before the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. Counsel for the petitioner did not rebut that submission.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternate remedy — CGRF complaint

HOLDING

A writ petition challenging an Executive Engineer's order is not entertained where the petitioner has an unrebutted alternative statutory remedy of complaint to the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. If a complaint is filed within two weeks, the Forum shall consider and decide it in accordance with law by a reasoned speaking order after hearing, preferably within four weeks. Coercive action is stayed for six weeks or until the Forum decides, whichever is earlier; that protection ceases if the consumer does not approach the Forum in time. Merits are left to the Forum. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The Court refused to entertain the writ because Clause 7.10 afforded a complaint to the CGRF and the petitioner did not rebut that alternative. ¶ 1

consumer-grievance-redressal-forum-remedy-clause-7.10 The consumer was directed to file a Clause 7.10 complaint within two weeks, to be decided by the Forum preferably within four weeks, with a time-bound stay of coercive action. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CHALLENGE TO THE EXECUTIVE ENGINEER'S ORDER DATED 10.02.2020

The Court expressly declined to enter into the merits, leaving them to the Consumer Grievance Redressal Forum. ¶ 1